

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caitlin Schwartz	Team: Team # 6	CCRB Case #: 201310088	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 10/26/2013 11:30 AM	Location of Incident: Watson Avenue and Rosedale Avenue	Precinct: 43	18 Mo. SOL 4/26/2015	EO SOL 4/26/2015	
Date/Time CV Reported Mon, 10/28/2013 9:19 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/28/2013 9:19 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Gregory Kennedy	26842	948364	043 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Gregory Kennedy	Force: PO Gregory Kennedy used physical force against § 87(2)(b) and § 87(2)(b)	
B.POM Gregory Kennedy	Abuse: PO Gregory Kennedy threatened to arrest § 87(2)(b)	

Case Summary

On October 28, 2013, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board by phone. § 87(2)(b) alleged that on October 26, 2013, PO Gregory Kennedy of the 43rd Precinct pushed him against a police car. PO Kennedy also pushed § 87(2)(b)'s brother, § 87(2)(b) and told him, "If you take one more step, I'll arrest you, too." PO Kennedy took § 87(2)(b) to the stationhouse and later released him with a summons for § 87(2)(b), from which § 87(2)(b) provided his name and tax number. § 87(2)(g)

On October 29, 2013, § 87(2)(b) was called and the mediation and investigation processes were explained to him. He requested to call back the following day after talking with his attorney. On November 1, 2013, § 87(2)(b) called the investigator and stated that he was still not sure whether he wanted to proceed with his complaint. He said that he wanted to speak to his attorney again and would call back either later that day, or on November 4, 2013. On November 29, 2013, § 87(2)(b) was called, and he said that he still had not decided whether he wanted to proceed with his complaint. It was explained to § 87(2)(b) that the CCRB could not leave complaints open indefinitely without obtaining a sworn statement, and § 87(2)(b) said that he would call back by December 2, 2013 to notify the investigator of his decision. On December 2, 2013, § 87(2)(b) left a voicemail that he would call soon to schedule an appointment for an interview at the CCRB. During the period starting December 20, 2013 and concluding February 14, 2014, § 87(2)(b) was called five additional times and left voicemails and messages requesting a call back to schedule his CCRB interview. On January 17, 2014, and February 14, 2014, § 87(2)(b) was mailed please call letters, neither of which was returned to the CCRB marked "return to sender." On February 24, 2014, § 87(2)(b) was called, and he declined to participate in the investigation. Also on February 24, 2014, § 87(2)(b)'s name was referenced against the New York City Department of Corrections database, and it was determined that he is not currently incarcerated. To date, § 87(2)(b) has not contacted the investigator to schedule an appointment for an interview at the CCRB. § 87(2)(g)

Team: _____

Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____